

25STCV06541 25STCV06541

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-06-25

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Case Number: 25STCV06541 Hearing Date: June 25, 2026 Dept: 731

SUPERIOR COURT OF CALIFORNIA

COUNTY OF LOS ANGELES

DEPARTMENT 731

TENTATIVE RULING

MEHEIR

JAHEZIAN,

Plaintiff,

v.

GENERAL

MOTORS, LLC,

Defendant.

Case No:

25STCV06541

Hearing Date: June 25, 2026

Calendar Number: 10

Defendant General

Motors LLC ("Defendant") moves

to compel the deposition of Plaintiff Meheir Jahezian.

Defendant's

motion to compel deposition is GRANTED. Plaintiff is ordered to appear for

deposition within 20 days of this order.

Plaintiff's

request for sanctions is DENIED.

Background

This is a lemon law

action. On March 7, 2025, Plaintiff Meheir Jahezian ("Plaintiff") initiated this action.

On April 9, 2025,

Plaintiff filed the first amended complaint, alleging causes of action for (1)

breach of implied warranty of merchantability; (2) breach of express warranty;

(3) fraudulent concealment; and (4) violation of Civil Code, section

1750, et seq., Consumer Legal Remedies

Act ("CLRA").

On May

19, 2026, Defendant filed this motion to compel Plaintiff's deposition. On June

11, 2026, Plaintiff filed an opposition. On June 17, 2026, Defendant filed a reply.

Legal Standard

"If, after service of a deposition notice, a party to the action ... without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice."

(CCP § 2025.450, subd. (a).)

The motion must be accompanied by a good faith meet and confer declaration under section 2016.040 or, "when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (CCP § 2025.450, subd.

(b)(2).)

If this motion is

granted, the court shall impose a monetary sanction in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (CCP § 2025.450(g)(1).)

Code of Civil Procedure

section 2025.610 provides, as follows:

(a) Once any party has taken the deposition of any natural person, including that of a party to the action, neither the party who gave, nor any other party who has been served with a deposition notice pursuant to Section 2025.240 may take a subsequent deposition of that deponent.

(b) Notwithstanding subdivision (a), for good cause shown, the court may grant leave to take a subsequent deposition, and the parties, with the consent of any deponent who is not a party, may stipulate that a subsequent deposition be taken.

Discussion

On January 30, 2026,

Defendant served a Notice of Deposition of Plaintiff, scheduled for February 19, 2026. (Roybal Decl., ¶ 3; Exh. A.) On February 17, 2026, Plaintiff served

an objection to the deposition notice on the ground that it was unilaterally noticed, and that Plaintiff and counsel of record are unavailable. (Id., ¶ 4; Exh. B.) Defendant sent Plaintiff's counsel a meet and confer email on May 11, 2026, requesting dates of availability for Plaintiff's deposition. (Id., 5; Exh. C.) Plaintiff did not provide any dates for Plaintiff's deposition, and to date, Plaintiff's counsel has not responded to the attempts to meet and confer. (Id.)

In opposition, Plaintiff argues that Defendant failed to properly meet and confer. However, Plaintiff never objected on the ground that the deposition already occurred. Thus, Defendant could not have met and conferred over this issue. Plaintiff objected on the ground that he was unavailable, so Defendant asked for other dates. It is unclear what else Defendant could have done to meet and confer on this single issue.

Plaintiff also argues Defendant filed to file a separate statement. A separate statement is not required under California Rules of Court, Rule 3.1345(b)(1) "[w]hen no response has been provided to the request for discovery when responses are not served."

Further, Plaintiff argues that he was already deposed in this case on November 21, 2025. Plaintiff

argues that pursuant to CCP § 871.26(c), Defendant had the right to depose the Plaintiff within 120 days after filing an Answer or other initial responsive pleading. In this case, Defendant filed its Demurrer on May 15, 2025, which would have brought the 120-day deadline to September 12, 2025. Additionally, Plaintiff argues, once mediation is completed under CCP § 871.26(e), “standard discovery procedures prescribed in Title 4 (commencing with Section 2016.010) of Part 4 of the Code of Civil Procedures shall apply.” Plaintiff argues that mediation in this case occurred on October 10, 2025; thus, standard discovery procedures were open at the time of Plaintiff’s first deposition. Plaintiff contends the deposition went forward in November 2025, and Defendant suspended the deposition roughly after one hour. Thus, Plaintiff argues that Defendant’s deposition of Plaintiff on November 21, 2025 was not limited in scope to only the Song-Beverly causes of action, nor was it limited to the two-hour time limit as prescribed in CCP § 871.26(c).

The only proper way a party may object to a deposition is under Civil Procedure section 2025.410. CCP § 2025.410 states, “Any party served with a deposition notice that does not comply with Article 2 (commencing with Section 2025.210) waives any error or irregularity unless that party promptly serves a written objection specifying that error or irregularity at least three calendar days prior to the date for which the

deposition is scheduled, on the party seeking to take the deposition and any

other attorney or party on whom the deposition notice was served. Here,

Plaintiff did not object on the basis that his deposition was already taken.

Further, Defendant provides that the prior

deposition was noticed under AB 1755 and limited to the categories permitted by

Code of Civil Procedure section 871.26(c), which did not allow Defendant to

elicit sufficient testimony related to Plaintiff's fraudulent concealment and

CLRA claims. Thus, Defendant has shown good cause to depose Plaintiff as to

these claims.

As

Plaintiff was served with a deposition notice, and did not proceed with the

deposition, the motion to compel is GRANTED. Plaintiff is ordered to appear for

deposition within 20 days of this order.

Defendant did not seek sanctions. Plaintiff seeks

sanctions against Defendant in the opposition. As the motion to compel

Plaintiff's deposition is granted, Plaintiff's request for sanctions in the

opposition is DENIED.